In short, like the Court, I see no good reason here to unsettle a critical constitutional question that has long been settled and that should remain settled.

* * *

With those additional comments, I join the Court's opinion in full.

JUSTICE JACKSON, concurring.

Whether to issue a stay is fundamentally an equitable determination. Fairness concerns compel courts to ask, in essence, whether a stay applicant "can be made to wait until the conclusion of the litigation to vindicate their purported legal rights, or whether irreparable harm will befall the applicant in the interim such that the court must act early to stave off that damage, for equity's sake." *Noem* v. *Doe*, 605 U. S. 960, 962 (2025) (JACKSON, J., dissenting from grant of application for stay). Because the authority to grant a stay is "justified by the perceived need 'to prevent irreparable injury to the parties or to the public' pending review," *Nken* v. *Holder*, 556 U. S. 418, 432 (2009) (quoting *Scripps-Howard Radio, Inc.* v. *FCC*, 316 U. S. 4, 9 (1942)), the most important considerations are "whether the applicant will suffer irreparable harm absent emergency intervention, as well as the relative harm to the parties and the public interest in the grant or denial of a stay." *Trump* v. *Orr*, 607 U. S. ——, —— (2025) (JACKSON, J., dissenting from grant of application for stay).

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I write separately to explain that, in this case, the Government falls far short with respect to these equitable factors. I have joined the Court's opinion because I also agree that the Government's merits arguments are unlikely to succeed.

On the equities, the Government has not identified any injury whatsoever beyond the harm that a President purportedly suffers when a Governor of the Board of the Federal

Reserve exercises power "over [his] objection." Application to Stay Preliminary Injunction 36; see also *post*, at 568–569, 595 (THOMAS, J., dissenting from denial of application for stay) (insisting that the Government is harmed simply because the District Court "allow[ed] a removed officer to continue exercising the executive power" (internal quotation marks omitted)). But "that assertion is just another species of the far-fetched contention that the President [is] injured whenever he is prevented from doing as he wishes." *Orr*, 607 U. S., at —— (JACKSON, J., dissenting). As such, it does not amount to the sort of tangible harm that warrants setting the interim status of a dispute in the President's favor.*

Even if the Government had alleged an irreparable injury, the stay inquiry still requires consideration of "whether issuance of the stay will substantially injure the other parties interested in the proceeding" and "where the public interest lies." *Nken*, 556 U. S., at 426 (internal quotation marks omitted). On the facts presented here, the public interest unmistakably weighs against the Government's application.

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Economic experts of all stripes agree that "[t]he Federal Reserve's independence is critical to fostering the long-term health and stability of the national economy." Brief for Former Treasury Secretaries et al. as *Amici Curiae* 6. That is because "effective monetary policy requires a commitment" to the often politically unpopular "long-term goals of price stability and steady growth." *Id.*, at 10, 14. But those long-term goals are not served if the officials responsible for the Nation's monetary policy are subject to the whims of

*If the President were able to point to a real-world injury that flows from Governor Lisa Cook's continued service during the pendency of this litigation, the equitable harm assessment might be different. But having to maintain an officer the President wants to fire does not count, because whether he is entitled to fire Cook is the subject of the pending lawsuit. If, as it turns out, the law does not permit this firing, the President is not injured at all—much less irreparably—by having to retain Cook during the litigation.

politicians—many of whom "have an incentive to respond to their constituents' immediate interests by prioritizing short-term economic growth." *Id.*, at 11.

Put differently, the public's interest is not served if a President can intimidate members of the Federal Reserve into doing his bidding. Experience has taught that high inflation, price variability, and, ultimately, financial panic can result when the Federal Reserve is subjected to rank politicization. See *id.*, at 14–16; *ante*, at 538. Indeed, even the mere *perception* of partisan influence over that body can trigger these disastrous consequences. See Brief for Former Treasury Secretaries et al. as *Amici Curiae* 9. Allowing Governor Lisa Cook "to be removed now, without even full merits review, would send an unmistakable signal that the Federal Reserve is vulnerable" to exactly this kind of influence. Brief for Former Government Officials et al. as *Amici Curiae* 10.

When it comes to the President's ability to fire members of the Federal Reserve, the public's interest in the continued viability of our Nation's economy is at stake. The thought that the President suffers a comparable level of harm simply because he is temporarily unable to remove Cook from office is "facially absurd." *Department of Homeland Security* v. *D. V. D.*, 606 U. S. 901, 909 (2025) (SOTOMAYOR, J., dissenting from grant of application for stay).

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In my view, today's application could be resolved by evaluating the equities alone. But we have had the benefit of multiple rounds of briefing, oral argument, and the time to consider carefully the legal issues this particular application presents, unlike in many other consequential emergency-docket cases we have decided recently. See, *e. g.*, *Labrador* v. *Poe*, 601 U. S. 1110, 1134 (2024) (JACKSON, J., dissenting from grant of application for stay). So, I join the Court in reaching a merits conclusion in this case. Still, on the most im-

portant stay considerations (the risk of irreparable harm and the equities) this application is not a close call. The Government misses the mark by a mile.

JUSTICE THOMAS, dissenting.

The President of the United States seeks relief from a court order that restores a principal executive officer to her position after the President removed her. President Biden appointed Lisa Cook to the Board of Governors of the Federal Reserve System in 2022. The Board, unlike the Federal Reserve Banks, is a federal executive agency that regulates much of the Nation's economy. After President Trump was elected, he learned that Cook may have committed mortgage fraud, a federal crime punishable by up to 30 years in prison, shortly before she took office. He thus removed Cook from the Board. He did so pursuant to his authority to remove principal executive officers under Article II of the Constitution and a statute that expressly authorizes him to remove officers on the Board for "cause."

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Cook sued in federal court to reclaim her office. She argued that her office was her "property," which the President could not deprive her of without "due process of law." She also argued that her apparent mortgage fraud was not a "cause" to remove her, and that the statute authorizing the President to remove her for "cause" implicitly required that the President provide her with notice and a hearing before any such removal. The District Court entered an injunction against Cook's removal. Today, this Court denies the President a stay of that injunction, allowing Cook to continue to exercise executive power after being removed by the President.

The Court's decision is incorrect. Cook's office was not her "property" because, in this country, government officials do not own the public offices in which they serve. Apparent mortgage fraud was a "cause" to remove Cook. And, the statute authorizing the President to remove Cook for "cause"